CONFUCIANIZING SOCRATES AND SOCRATIZING CONFUCIUS: ON COMPARING *ANALECTS* 13:18 AND THE *EUTHYPHRO*

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Although the traditions of Chinese and Western philosophy are sometimes regarded as incommensurable, philosophers and others have long been fascinated with the comparative study of how these traditions approach philosophical issues. Particularly fertile ground for such analysis is provided when thinkers from both traditions address the same or similar questions, and it is therefore unsurprising that an apparently quite specific question that was addressed by both Confucius (551–479 B.C.) and Socrates (469–399 B.C.) has attracted much attention. Their respective responses to the question of how a son should respond if his father commits a crime are found in Confucius' *Analects* 13:18 and in Plato's *Euthyphro.* The aim of this essay is to assess three comparative analyses of these responses with particular reference to their underlying assertions of commonality. By "assertions of commonality" we mean assumptions or presuppositions of commonality that serve to justify the comparative exercise in the first instance. This essay, therefore, is primarily about methodology, but we shall also discuss—necessarily, given the subject matter—aspects of filial piety.

The essay is in four parts. We first introduce the passages in which Confucius and Socrates address the question as to how a son should respond to a delinquent father. As we shall see, the response of Confucius focuses specifically on the issue of *xiao* (filial piety) in the *concrete situation* presented to him, whereas Socrates uses the issue of *hosion* (piety) as a means of investigating a different, *broader issue.* We then examine two comparisons that assert commonality between the two classical responses from a Confucian standpoint, one by Rui Zhu and another by Greg Whitlock.[1] These writers may be said to "Confucianize" Socrates because they undertake comparative analysis on the basis of the presupposition that both passages are primarily about only what the passage in the *Analects* is about. We then turn to a comparison that constructs commonality between Socrates and Confucius from a Socratic standpoint. We suggest that Jiyuan Yu "Socratizes" Confucius to the extent that he proceeds from the understanding that both passages may be compared in light of the broader issue addressed by Socrates only, namely what is known philosophically as "the *Euthyphro* dilemma."[2] Finally, we offer some brief observations regarding comparative philosophical analysis in general and about comparing the responses of Confucius and Socrates in these passages in particular.

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Addressing the Father-Son Relation: Confucius and Socrates

In *Analects (Lunyu)* 13:18 Confucius addresses the question of how a son should respond in the case of the father's misdemeanor when his interlocutor observes that an upright man in such a situation bore witness against his father:

> The Governor of She said to Confucius, "In our village there is a man nicknamed 'Straight Body.' When his father stole a sheep, he gave evidence against him." Confucius answered, "In our village those who are straight are quite different. Fathers cover up for their sons, and sons cover up for their fathers. Straightness is to be found in such behaviour."[3]

Against a background of some disputes regarding translation,[4] recent scholarship has interpreted this passage to mean either of two things. Many simply take Confucius as saying that to report one's own father is not—meaning never and nowhere—upright. Others think that Confucius must be understood more contextually and take him to be against reporting one's own father only in the specific context of the case upon which he is commenting; the passage, for instance, has been interpreted as exemplary of the role that Confucian ethics—in the absence of an "abstract standard by which to resolve the conflict of values"—accords to "individual choice."[5] Different views also exist as to Confucius' reasoning. Some are of the opinion that Confucius thinks that stealing a sheep is not a crime serious enough to justify denouncing one's own father to the state authorities. Others suggest that he thinks that this is not the way a son should attempt to correct his father's wayward behavior. Yet another view is that Confucius is making the point that *in his village*—that is, somewhere in the state of Lu—the matter would be treated differently, without explicitly condemning the action taken in the concrete case. In short, the interpretation of *Analects* 13:18 depends greatly on how one understands the *Analects* and Confucianism in general, particularly as regards the nature of its truth claims and the contextuality or universality of single statements.

In the *Euthyphro,* one of Plato's (ca. 428–347 B.C.) Socratic dialogues, Euthyphro meets Socrates outside the court and tells him that he is on his way to pursue a suit against his father for killing a household slave. Euthyphro's father had bound the slave and thrown him in a ditch because the slave had killed another household slave; Euthyphro's father had then sent to Athens to ask of a diviner what should be done with him, but in the meantime the slave had died, bound and unattended in the ditch. The encounter with Euthyphro prompts Socrates (who himself has just been indicted) to engage in his typical philosophical activity, namely "elenchus" or "elenctic examination." In the Socratic dialogues, this indirect pedagogical process always leads the interlocutor to question and refine his initial position.

On hearing of the charge about to be brought by Euthyphro, Socrates adopts his typically skeptical stance and observes that only a man of high wisdom knows how to prosecute his father righteously. In their subsequent discussion of Euthyphro's intentions and the charges faced by Socrates, Socrates questions Euthyphro on the nature of piety and impiety. Euthyphro's initial response is that piety

> is to do what I am doing now, to prosecute the wrongdoer, be it about murder or temple robbery or anything else, whether the wrongdoer is your father or your mother or anyone else; not to prosecute is impious.[6]

When questioned further by Socrates, Euthyphro accepts the limitations of this response, and the remainder of the dialogue constitutes discussion of other possible meanings of piety and impiety. Euthyphro's uncertainty regarding the nature of piety suggests to the reader that he does not appear to have the wisdom necessary to pursue the suit against his father, but this turns out not to be the point: Euthyphro's situation is basically a pretext in the dialogue for discussion of a broader issue and Socrates' formulation of the influential "*Euthyphro* dilemma."

The *Euthyphro* dilemma is one of the central dilemmas in the Western philosophical and theological traditions. In the course of the dialogue, Euthyphro, after he has abandoned his original definition of piety, suggests the following alternative definition: that what any one or some of the gods agree in approving is the holy or the pious. When Socrates raises questions regarding that definition, Euthyphro responds by acknowledging that it must be the case that what *all* the gods agree in approving is the holy or the pious. At this point Socrates interjects with the question known as "the *Euthyphro* dilemma": "Is the pious being loved by the gods because it is pious, or is it pious because it is being loved by the gods?"[7]

In ethical terms, this dilemma goes beyond any question as to the meaning of "piety"—"good," for example, or "holy," can replace "piety" as the issue at stake in the dilemma—and refers to the source of moral authority: it raises the issue of primacy as between nature and a superior will, and therefore between what may be rationally discoverable and what is commanded. If one takes the view that what is pious is pious "because it is being loved by the gods," then one is responding to the dilemma in *voluntarist* terms—one is considering the source of moral authority to be pure will or command. Voluntarism views reason and intellect as subservient to will and is the basis for what is often referred to as "command theory," within which the command of sovereign to subject is the central element. If, on the other hand, one considers that what is pious is "being loved by the gods because it is pious" then moral authority—the judgment that something is pious—must be conceived in *rationalist* terms. According to this view, in order to judge that something is pious, one can and must discover this, using one's reason and intellect.

These issues first assumed real significance in the Western philosophical tradition in the context of early and medieval Christian theology. The early Church Fathers, including St. Augustine (A.D. 354–430), adopted a voluntarist position vis-à-vis the *Euthyphro* dilemma. By contrast, St. Thomas Aquinas (ca. 1225–1274), the thirteenth-century theologian whose work dominated medieval theology, responded to the dilemma in Christian rationalist terms. William of Occam (1290–1349) formulated an understanding of the relationship between divine power and the creation that was again—that is, essentially similar to St. Augustine and the other Church Fathers—voluntarist.

The positions of, and the disagreement between, St. Thomas and Occam are of enormous significance in the Western philosophical tradition. While the Thomist tradition underpins much contemporary virtue ethics, the ethical tradition established by Occam divides into three streams: the religious stream, where God's command remains the criterion of action; the secular, positivist stream, where the command of the Sovereign replaces the command of God; and the modern natural law tradition, in which God's command "becomes the innate moral law, conceived, clearly or confusedly, as a set of propositions."[8]

Two Comparisons "Confucianizing" Socrates

The initial similarity between *Analects* 13:18 and Plato's *Euthyphro* is that both recount a conversation regarding a son in some way taking the side of the civil authorities against his father, further to some illegal act on the part of the father. Moreover, in both instances, the more prominent party to the conversation—that is, Confucius in the *Analects* and Socrates in the *Euthyphro*—seems to speak out against such a response on the part of the son. As we shall now see, Rui Zhu and Greg Whitlock both construct and interpret this initial similarity as a commonality from a Confucian standpoint: the father-son relationship, which is central to the passage in the *Analects,* is almost exclusively the topic of their texts. The result is an assertion of commonality that provides the basic justification for the comparative exercise; namely, that Confucius and Socrates both address the *same* question, and *only* the question, of filial piety *(xiao).*

Although Rui Zhu observes that the different stances of Confucius and Socrates indicate different underlying moral philosophies, and although he claims to use their comments only as bridges to explore early Confucian and Greek ethics, he discusses at great length and in far greater depth their responses to the specific question. His first suggestion, for example, is that Confucius and Socrates respond similarly—but not in exactly the same way—to the same question:

> Confucius stands on the same line with Socrates but seems the more radical of the two. Socrates does not directly refute Euthyphro but only suggests that he makes sure he understands what he is doing before going any further. . . . Confucius's response is more rigid, for he categorically dismisses an act of the Euthyphroian kind. He demands that father and son cover up for each other in the case of either one's guilt. Compared to Socrates, Confucius advocates the position that seems a little too strong and leaves no room for justice, while Socrates does not have that problem with justice.[9]

It seems odd to consider both thinkers as standing "on the same line" in a passage that not only focuses on differences between their perspectives but also raises more questions than it answers. Certainly, it is difficult to agree with Zhu when he claims that these are the "[plain and unproblematic] prima facie observations that we make from the remarks of Confucius and Socrates."[10] The view that the two thinkers are addressing the same question is Zhu's basic "assertion of commonality"; he does not

refer at all to the *Euthyphro* dilemma, despite his stated interest in exploring ethics as a distinct theme.

Given the exclusion of the dilemma, what *does* Zhu say of the dialogue? Zhu observes—with reference to works such as Hesiod's *Theogony,* Homer's *Iliad,* and Aristophanes' *Clouds*—that the notion that the father has to be overcome by the son is a familiar theme in Greek literature, and that this reflects a certain moral realism, namely the Greek willingness to acknowledge the natural or potential conflicts between father and son. Filial piety, therefore, did not represent for the Greeks what Zhu terms the "governing principle"—the principle that has to be yielded to if social or moral conflicts arise—of the father-son relation. For the Greeks the father-son relation is modeled after the human-gods relation and is imbued with ambivalence: the father "should be looked upon in the eyes of a boy as a godlike figure that demands *respect and fear.*"[11]

The Greeks' willingness to acknowledge ambivalent sentiments toward their fathers could be perceived, according to Zhu, as the reason for their upholding *justice* as the governing principle in cases of conflict: "As the highest end of rational life justice must not be compromised by any emotion, including love, respect or fear."[12] In addition to this suggestion that justice is in some sense "rational," he notes that justice was associated in ancient Greece with two things in the human realm: the concept of fates (whereby each individual is assigned shares of good and evil—one's "lot"—that cannot be altered) and the effort to ensure that every civic arrangement has to be in accordance with the divine cosmic order established by Zeus. Zhu writes:

> As the governing principle, justice overrides other principles if conflicts occur. This may mean either that a father has to abandon and leave his son in the hand of justice for the sake of civic order or that a son may have to bear witness against his own father, if any of them is guilty of injustice.[13]

A just charge by a son against an unjust father upholds the just principle of piety because filial piety is modeled on man's piety to the gods, and "if a father compromises justice, his son's piety to the gods overrides his filial piety."[14] A father, Zhu writes, "could be called impious if he has brought injustice to his son, and this would not make sense if it is only filial piety that matters."[15] Since piety commands a guilty father's son to seek justice, Zhu argues that Euthyphro's thinking is in line with the prevailing morals, and that this explains, "better than does Socrates' usual indirect pedagogical style, why Socrates challenges Euthyphro on only his haste but not his act per se."[16]

This conclusion could only be reached in an analysis that does not consider the broader *Euthyphro* dilemma. An alternative view is that Socrates challenges Euthyphro because he wants to discuss piety and raise a fundamental dilemma regarding the source of moral authority. According to this view, Socrates' challenge to Euthyphro is not about either his haste *or* his act; rather it is a challenge to reflect on and explore the nature of *hosion* (piety) and, more fundamentally, the nature of morality. It is, in

other words, based on the goals of Socrates' "usual indirect pedagogical style" in relation to a very grand philosophical theme.

Zhu's analysis of *Analects* 13:18 is based on his view that it is obvious that Confucius rigidly disapproves of "an act of the Euthyphroian nature."[17] Beyond his assumption that the two texts address precisely the same question, he presupposes that there is one authoritative interpretation of Confucius' response. We have remarked that interpretations of *Analects* 13:18 depends greatly on how one understands the *Analects* and Confucianism in general, particularly as regards the nature of its truth claims and the contextuality or universality of single statements. Zhu refers also to "Confucius's un-Socratic explicitness and inflexibility."[18] But scholars have long emphasized the suggestiveness and vagueness of the Chinese language and the flexibility exhibited by Confucius. For instance, in *Analects* 11:22 Confucius gives different answers when his disciples Ranyou and Zilu both ask him whether one should act upon learning something; taken to task, Confucius responds: "Ranyou is diffident, and so I urged him on: But Zilu has the energy of two, and so I sought to rein him in"; and in *Analects* 9:4 Confucius is described as "not inflexible" *(wu gu)*.[19] Scholars such as Roger Ames and Henry Rosemont have argued that Confucius is decidedly relational and contextual in his statements.[20]

Despite all this, Zhu contends that "one of the staunchest maxims of early Confucianism" is that a son ought to protect his guilty father even if this means cheating justice:

> For a Confucian nothing comes above his filial piety. Confucianism does not question an individual's social or legal obligation but locates filial obligation both practically and theoretically prior to the rest of duties. If a circumstance is such that a person could not fulfil his filial piety without violating his social duty, he should not be held back from fulfilling the filial order.[21]

According to Zhu the Confucian "maxim" that filial obligation comes before social obligation reflects the fact that "Confucian ethics takes *love,* specifically love between father and son, as the overriding principle, in contrast to the Greek revering of justice."[22] Zhu suggests that this has a threefold basis. First, in Confucianism social values emanate from family values; because the family is the site of social and moral cultivation, the family bond has to be stronger than the social bond in order for the former to support the latter. Second, moral feeling is more important than right or wrong in Confucianism; precedence is given to *ren*—human-heartedness or "love"—as opposed to *yi*—righteousness or "what one ought or ought not to do." Finally, Confucian ethics considers "family love as the root of love for other people and the foundation of overall morality"; Confucian moral self-cultivation is therefore "a process of extending your feeling from within to without and from yourself to other people."[23]

As Zhu notes, this latter "process of extending" has two aspects: *zhong* (loyalty), which is the "positive extending" (if you want to obtain something for yourself, obtain it for others), and *shu* (consideration), which is the "negative extending" (never do unto others what you would not want others to do unto you). He writes:

> In order for extending to be possible there must be something to be extended. A Confucian cannot avail himself of a divine order such as the one set up by Zeus in the Greek world . . . since Confucius professes no interest in gods and spirits. A Confucian extends his natural love . . . and ultimately his love derived from biological bonds. The natural bond between father and son is the starting point of a person's moral cultivation and the solar energy powering other moral relations, for it is by this relation that they are made possible.[24]

For Zhu, "filial love" is the "governing principle in . . . Confucian ethics" and the "extending base of all other loves," which he seems to subsume under the notion of *ren* (human-heartedness, "love").[25] By way of confirming the secular philosophical context, Zhu also observes that Confucian ethics departs from Greek ethics in that the former is "deliberately secular, harboring no interest in divine affairs. Man is the center of Confucianism."[26]

There are problems with Zhu's placing of "filial love" or "mutual love between father and son" above *ren* that appear to derive from both his basic assertion of commonality and his particular interpretation of Confucius. For one thing, he conflates "filial obligation," "filial love," and "love between father and son," using these expressions indiscriminately. Arguments drawn from the central position of family values in Confucianism and from the *mutual* relationship between father and son (or parent and child) are thus turned into arguments to support his thesis of the centrality of filial piety, that is, the one side of the relationship emphasizing filial obligation to the father. Furthermore, Zhu's search for a "governing principle" that overrides other principles in the case of social or moral conflict is predicated on a specific reading of Confucianism, for it is not at all clear whether the case for such a "Confucian principle" can be argued coherently. When it *is* argued, that "principle" is usually said to be *ren.* Tu Wei-ming, for instance, considers Wing-tsit Chan's view that "in the hierarchy of values in Confucian symbolism *jen [ren]* occupies the central position around which other cardinal virtues are ordered" to be "self-evidently true."[27]

Moreover, although Zhu is in line with much scholarship when saying that *ren* is rooted in and is an extension of the "love between father and son," his inference that "love" is the "governing principle" seems problematic for at least two reasons. First, to turn the father-son relationship into a loving one of filial piety *(xiao) and* parental love *(ci)* is a primary and constant task to everyone striving for *ren.* Yet, any exclusive priority to this relationship will likely frustrate that very task, part of which is to extend the "love" cultivated in it to other contexts (family, community, strangers). Zhu himself emphasizes this "process of extending."[28] Second, the relationship between a son and his father is but one among many relationships that inform *ren.* Others are the relationships between a son and his mother and between brothers, and Zhu inadvertently concedes this. To bolster his argument for the exclusive primacy of the *father-son* relationship, he quotes *Analects* 1:2, where proper behavior toward "parents" (in the translation that Zhu uses, this includes the mother) and elder brothers *(xiaodi)* is emphasized as the root of *ren.*[29]

To conclude, when Zhu presents filial piety "as the source of all virtues," he is taken in by a historically subsequent and misguidedly politicized version of Con-

fucianism, which singles out filial piety as the guiding and central virtue and turns it into an absolute obligation. By way of an analogy between father/son and ruler/subject, this shift had assumed crucial political significance in the Han dynasty. Presupposing that *Analects* 13:18 as well as the *Euthyphro* are exclusively about conflicting moral principles regarding filial piety, Zhu draws out differences between Confucius and Socrates on the basis of what he takes to be the authoritative interpretation of Confucius' response and of Confucianism in general and ignores other strands of interpretation, for instance the influential Mencian strand.

We turn now to a second study, which in our view also "Confucianizes" Socrates. Greg Whitlock's discussion of the issue of "concealing" the misconduct of one's own father is based on the same basic "assertion of commonality" between the two texts as Zhu's analysis, namely that the two thinkers are concerned *only* with the narrow question of the father-son relation in the context of the father's wrongdoing. Like Zhu, Whitlock does not refer to the *Euthyphro* dilemma; unlike Zhu, however, Whitlock's asserted commonality, the assumption that justifies the comparative exercise, is *implicit*. What is interesting from a methodological perspective, as we shall see presently, is how Whitlock distinguishes filial piety from piety generally. First, however, let us look at his commentaries on the passages.

For Whitlock, that the father in *Analects* 13:18 has done a wrong of which the son knows and which the son judges wrong is a "fact"; however, he continues, of central importance to the passage is what Confucius means by "conceal" *(yin),* that is, the character that Lau in his translation of the passage (which we quoted above) renders as "cover up." Whitlock assumes that Confucius means "to not say publicly what he knows about the crime," but does not mean that "the son should lie in public about his father's innocence."[30] He then investigates a number of reasons a Confucian might produce as to why Confucius reacts the way that he does, while also referring to some arguments from within Confucianism as to why an interpretation of Confucius as saying that a son should never and nowhere report his father is inaccurate.

For instance, Whitlock addresses the argument that a son would not turn his father in because such a public accusation would undermine the structure of the family by taking over the authority of the father and by threatening a continuity with his ancestors that family members must maintain. Yet Whitlock lists conflicting demands on the son, such as Confucius' insistence that a son should follow the ways of the father for three years after the father's death, which cannot possibly include the idea that a son should imitate his father's wrongdoings. Further, everyone should try hard to become a *junzi,* that is, an "exemplary person" or "gentleman," who by definition is "honest," and honesty runs counter to complicity in wrongdoing. Finally, an exemplary person is not to be blindly obedient (15:37), and a son is not to be simply silent when faced with a wrongful father, but is to "remonstrate gently" (4:18). A son, therefore, according to Whitlock, "may remonstrate with the father over the theft, but if spurned, should not publicly accuse."[31] If remonstrance fails, the son effectively remains complicit; Whitlock suggests that a son may try to avoid the problem of com-

plicity by adopting the belief that good *intention* was what mattered, but this belief will not work because part of the son's intention is "to continue remaining silent."[32]

Another argument against publicly accusing one's delinquent father follows yet a different line of reasoning. Whitlock points out that many passages in the *Analects* stress self-cultivation. These passages could be used to support the argument that the purpose of self-cultivation is to improve *oneself* and not to make accusations against others. Exemplary persons, for example, are said to "make demands on themselves, while petty persons make demands on others" (15:21). However, Whitlock observes that the son's knowledge of his own complicity would eventually infringe irredeemably on the effort of self-cultivation.

Whitlock then argues that in extreme cases such as a father's continuing misconduct—cases addressed neither by 13:18 nor anywhere else in the *Analects*—Confucius may endorse a concerted action by the family reporting the father to the authorities.[33] Whitlock substantiates his argument by referring to a clan rule, that is, a specific rule within a sort of intra-family law code, which he believes was written with *Analects* 13:18 in mind and which lists concrete wrongdoings such as infringing on the property of other people as well as concrete procedures for handling an irreformable family member, including the possibility of reporting this person to the civil authorities. Whitlock's conclusion is that a "dishonorable father's actions ultimately must not be allowed to undermine the moral advance of family members, including the son."[34]

After setting out his reading of *Analects* 13:18, Whitlock turns to the *Euthyphro* and highlights what he considers to be resemblances between Confucius and Socrates as to the question of filial piety. Like Confucius, he argues, Socrates is perplexed that one family member would denounce another, as family relations are to him "truly . . . exceptions to moral law."[35] Euthyphro responds that what counts is whether or not the killer has killed lawfully. Socrates—in Whitlock's view, and again like Confucius—is skeptical whether "*anyone* would know the right thing to do in such a case."[36] Notwithstanding the prolonged and inconclusive deliberation on the nature of piety in the dialogue, however, Whitlock claims that Socrates' notion of filial piety "lurks between the lines of the dialogue" and may be summarized as: "Filial piety requires a strict loyalty to the father excluding all public accusations."[37]

It should be noted that Whitlock takes differences seriously. He mentions, for example, that Confucius is confronted with the theft of a sheep, while Socrates is dealing with the manslaughter of a slave who is a murderer. However, for Whitlock, this difference does not undermine their common view that "a son should protect his father from accusation,"[38] but Whitlock acknowledges also that there are some "major differences" that threaten to undermine the resemblances between the passages under comparison: chief among these differences is that "Confucius is interested entirely in filial piety, while Plato is interested in piety-in-general, whether it be filial, legal or religious."[39]

Since *Analects* 13:18 is, in Whitlock's opinion, about filial piety, he sets out to show that one can examine filial piety as a separate dimension in the *Euthyphro.* He

suggests that there are good reasons to believe that we can treat filial aspects of piety as distinct from religious and legal piety. "Indeed," he observes, "the early scenes of *Euthyphro* clearly emphasize the filial connotations of piety."[40] He then concludes that it is appropriate to compare the Socratic stance on filial piety with regard to the practical issue of a son accusing his own father. He suggests that we can therefore consider the filial connotations of piety vis-à-vis the issue "without worrying that we ignore a more fundamental and decisive connotation."[41] What Whitlock seems to have done is to have produced—or, perhaps more accurately, artfully constructed—an argument supporting the assertion that both Confucius and Plato (or Socrates) are interested in *precisely* the same question of filial piety and that based on this commonality the two might be fruitfully compared.

But how sound is this asserted commonality? It could be argued—even if we assume both Confucius and Socrates to be responding to the practical issue of a son accusing his father—that there are still differences between Confucius and Socrates that run deeper and that the constructed commonality is in fact a *mis*construction. For one thing, what significance does the "practical issue" have for Confucius and Socrates? On a contextualist reading of *Analects* 13:18, Confucius is not interested in pronouncing a truth about filial piety as such or a definition that applies to all its instances; he simply offers his opinion on what he thinks would have been appropriate for the son to do under the given circumstances. For Confucius, the practical issue of a son accusing his father is of interest without a view to theory. Similarly, it is inseparable from the concrete situation presented to him. He does not engage the question abstractly; what he does is to relate the concrete situation to his own context. Socrates, in turn, is interested in the practical and concrete situation only with a view to the theoretical and abstract, that is, insofar as it is an instance of piety as such or, if we accept Whitlock's argument, of filial piety as such. Plato has Socrates move away from questions about the relationship between father and son to the dilemma about the intrinsic character of the action abstractly considered.

Surprisingly, Whitlock himself, at one point in his discussion, writes much in the vein of this objection. In his conclusions, he states that Confucius "spends a tremendous amount of effort thinking about the family in realistic, concrete situations," while Plato "spends little time on the family."[42] He further notes that Socrates is "chasing Euthyphro around a circle of definitions" and that the *Euthyphro* "is probably more important for its logical analysis of definitions than for a detailed concept of filial piety, which it does not provide."[43] And, even more tellingly, Whitlock concedes that the question shifts from "Should a son publicly accuse his father of wrongdoing?" to "What is piety?" To the extent that Whitlock nonetheless takes the first of these questions as the common question of Confucius and Socrates, he can be said to Confucianize Socrates. In the light of these comments, Whitlock's "final analysis" that Confucius "works through the pitfalls of the [issue] with greater detail" is clearly predicated on his asserted commonality and is not at all surprising considering that Plato (or Socrates) arguably does not address *that* issue at all.[44] Certainly, both Confucius and Socrates respond to a situation of a son in light of his father's misdemeanor, and to that extent the case for commonality might be argued. But Con-

fucius responds with a view to the specific concrete situation and bearing his own context in mind; for Socrates the concrete situation is basically a pretext for raising the *Euthyphro* dilemma.

One Comparison "Socratizing" Confucius

Just as there is a danger of reading too much Confucius into Socrates, there is also a risk of reading too much Socrates into Confucius. We suggest that this is what Jiyuan Yu does in his study: Yu *does* include reference to the *Euthyphro* dilemma in his discussion, but his attempt to impose the issue in the Confucian context is in our view misplaced.

Yu's basic assertion of commonality is that Socrates and Confucius can be regarded as the respective founders of Greek and Chinese ethics, as they both give "new meaning to religious beliefs and a new interpretation of the relation between the divine and the human."[45] Yu argues that none of the reasons that justify their status as inventors of ethics seems to be related to the "divine being," but all are "secular" and "rational" reasons (he takes Confucius as formulating a *ren* "theory" in which "rationalism" plays a central role, while Socrates issues no less than a "manifesto for rationalism" in the *Crito*).[46] However, despite their "respective rational grounds" for practicing ethics, Yu observes that both Confucius and Socrates claim to be on "a divine mission."[47]

For Yu, in stark contrast to Zhu, it is apparent that the divine *does* play a noticeable role in the thought of Confucius, and he refers to the passage—which he calls the "divine mission passage"—in *Analects* 3:24, where a visitor says to the disciples of Confucius, "The world has long been without the way *[dao].* Heaven is about to use your Master as the wooden tongue for a bell." Moreover, Yu points to Confucius' claim in *Analects* 14:35: "There is no one who understands me. It is only Heaven that understands me."[48] Similarly, there is the "religious" Socrates, who claims to do philosophy by the god's command because—purportedly, according to Yu, in "striking similarity" to Confucius—he "also claims to have a divinely ordered mission to investigate ethical issues."[49] Socrates declares at his trial:

> I was attached to this city by the god—though it seems a ridiculous thing to say—as upon a great and noble horse which was somewhat sluggish because of its size and needed to be stirred up by a kind of gadfly. It is to fulfill some such function that I believe the god has placed me in this city.[50]

This leads Yu to remark, "As Heaven uses Confucius as the wooden clapper for a bell, the Delphic god uses Socrates as a gadfly."[51]

The question addressed by Yu's article is this: what precisely is the place of religion in the thought of Confucius and Socrates if they had independent, rational reasons for doing ethics: "Is the beginning of ethics based on a rational ground, or is it the result of divine command?"[52] This looks very much like a version (albeit at one remove, so to speak) of the *Euthyphro* dilemma—are the ethical theories of Confucius and Socrates based on, or derived from, divine will, or do they view the source

of moral authority as something that is rationally discoverable? In Yu's analysis, however, the question appears to mean something else. He observes, for example, that commentators differ on what to make of Socrates' commitments to rationalism and to the obedience to the divine command. What is noteworthy about the range of perspectives that Yu presents is that they do not appear to relate to the *content* of Socrates' teaching—that is, to his views on the source of moral authority—but only to the matter of assuring him "of the moral certainty of his undertaking."[53] Perhaps this is not surprising given that Socrates did not develop a substantive ethical theory, but when Yu develops *another* response to the issue of whether the beginning of Chinese and Greek ethics is based on a rational ground or is the result of divine command through a *different* analysis of the *Euthyphro* dilemma, we find the suggestion, albeit implicitly, that Socrates' *method* indicates where he stood vis-à-vis the dilemma.

It is clear from both the *Apology* and the *Analects,* Yu contends, that the divine mission is a direct prescriptive neither for Confucius nor for Socrates: "Each derives a belief from his own understanding that his mission is divine. . . . Both . . . believe that to conduct their respective missions is what the virtue of piety means."[54] In the *Apology* Socrates insists that philosophical activity is his service to the god, and, for Yu, this suggests a link between the *Apology* and the *Euthyphro.* In the latter, Euthyphro falls short of answering the question of what kind of service human beings can provide to the god:

> [I]f we are allowed to relate this to Socrates' claim in the *Apology* that his elenctic examination serves the god by improving the moral state of the human soul, we have an answer as to what service human beings can provide. According to this reading, Socrates, in saying in the *Apology* that his examination is a service to the god, means that his philosophical activity is not impious, but represents what piety really is.[55]

Similarly, Yu claims, Confucius transmitting the tradition is analogous to what a filial son does to his father's work, and "the purpose is to carry on and fulfill the *dao* embodied in the tradition."[56] Moreover,

> since a son's transmission of his father's work shows his virtue of piety, Confucius's philosophical activity of transmitting traditional value can also be regarded as his piety to the authentic tradition. Because tradition is where Confucius believes the *dao* of heaven is embedded, we can say that to be pious to tradition amounts to being pious to Heaven.[57]

This link with piety leads Yu to argue that neither Socrates nor Confucius simply adopts a voluntarist position. Rather, for each of them the "mission is divinely charged" because it is itself "meaningful."[58] What both do,

> independently but commonly, is to combine the unique sense of the significance of their work to the traditional faith in the divine being, to the effect that what the divine being really wants from human beings is that we lead a meaningful and fulfilled life, and that the best way to be pious is to think about and find out the right way to conduct our lives.[59]

This, according to Yu is the "basis for the claim of divine mission." At this juncture in his analysis, Yu is using the *Euthyphro* dilemma to frame an analysis of the na-

ture of Socrates' and Confucius' investigations. He refers to the *Euthyphro* dilemma and states: "We can ask the *same* question of Socrates' own divine mission, and Confucius's."[60]

Yu's comparison of Confucius and Socrates through the lens of the *Euthyphro* dilemma is misplaced with regard to both thinkers. As regards Socrates, Yu takes the *Euthyphro* dilemma out of the context to which it refers: the issue of the source of moral authority. It simply cannot be applied to Socratic thought because Socrates did not develop a response to the dilemma: his main contribution to ethical thought is the *posing* of the dilemma. There are of course strains of rationalism rather than voluntarism in Socrates' view that the best way to be pious "is to think about and find out the right way to conduct our lives," but this is primarily a reflection of Socrates' basic *modus operandi,* not an ethical theory. (Rationalism becomes clear in later Platonic dialogues, where Plato shows that rationalism is intrinsic to the way we have to think about our lives; even if we say that we should obey the gods' commands, we must give ourselves a reason for saying so.)

As regards Confucius, Yu implies that Confucius' position is also essentially rationalist as opposed to voluntarist, but he does not explore the matter in any detail and therefore does not enlighten us as to why this might be the case. Given the nature of his comparison, one might expect an analysis of the basic principles of Confucianism, inquiring into their origin and, in particular, addressing the question of whether they were conceived as somehow commanded—by a deity, say, or by principles derived from the sense of tradition in the abstract—or whether they were conceived as evident only (or first and foremost) from intelligent inquiry, that is, as rationally discoverable.

Yu, perhaps unwittingly, is wise not to press the issue of where Confucius' thought might lie in terms of the *Euthyphro* dilemma. The point is that such an analysis (as much as the comparison of the nature of Socrates' and Confucius' investigations based on the *Euthyphro* dilemma) rests on a false basis. The choice between voluntarism and rationalism that is stipulated by the *Euthyphro* dilemma is simply absent in Confucianism. This is shown by the set of terms Yu employs when interpreting Confucianism in order to advance his argument that the dilemma may be equally posed to Socrates and to Confucius. We would prefer terms that differ substantially from Yu's, but our criticism is not in the first place directed at his terminology but rather at his omitting to make explicit his assertion of commonality. Making this explicit would involve reference to alternative interpretations and would require that reasons be stated why, in his opinion, these are not to be followed.

For example, consider Yu's use of "Heaven" and of "the divine" in Confucianism. Yu informs the reader that "Heaven" is an English translation of the Chinese character *tian,* that it literally means "sky" but "has an impersonal ordering force."[61] He further concedes the limited "role of Heaven."[62] Yet it is by means of a debatable inference from *Analects* 17:19 involving "Heaven" that Yu comes to claim that "Heaven's will is known through observation and understanding" and that this is also the manner in which "Confucius derives his sense of the divine mission."[63] Yu seems to suggest that "Heaven"—although not really saying anything or issuing any explicit commands—

has a "will" of its own and stands in some relation to how Confucius' mission is "divinely" charged. Upon closer examination, however, Yu strikes an analogy between "Heaven" and "tradition," culminating in the statement that, in Confucius, "to be pious to tradition amounts to being pious to Heaven."[64] Finally, Confucius' "divine mission" is "divinely charged" because the "mission itself is meaningful."[65] In line with much scholarship, Yu appears to underline that for Confucius "the secular is sacred" (Herbert Fingarette's famous phrase) and that by the time of Confucius *tian* has become impersonal as well as radically immanent. Ames and Rosemont, for example, are among those who argue that a strict notion of transcendence is absent from the concept. They describe *tian* as "both *what* our world is and *how* it is" and observe that it stands for "a cumulative and continuing cultural legacy focused in the spirits of those who have come before."[66]

However, if Yu were to have had such an understanding of *tian* reflected in his terminology, he would not have been able to sustain as easily his asserted commonality, namely that both Confucius and Socrates are on a "divine mission." In fact, it seems that the word "divine" means something very different to Confucius than it does to Socrates. This difference, however, is completely lost when Yu concludes that Confucius and Socrates *both* relate their work to the traditional faith in the divine being, the divine wish that we lead meaningful and fulfilled lives, and to the idea that the best way to be pious is to think about and find out the right way to conduct our lives. Yu's presentation of Confucianism in terms such as "Heaven" and "divine"—let alone the "divine being"—suggests that there is a choice for Confucius to make and that "command" could possibly be one of the two options. Only thus can he ask whether Confucius is "Heaven's missionary or a rational philosopher."[67]

To understand Confucius as a "rational philosopher" is equally misconstrued. Yu does not explain how or in what sense one could speak of "rationalism" with regard to Confucius without deviating significantly from what the term might mean with regard to Socrates. For one thing, Yu himself remarks that Confucius "does not present a sharp conflict between religion and rationalism."[68] We contend that this still understates the case, particularly in the absence of sufficiently detailed accounts of what "rationalism" and "religion" might and might not mean in a Confucian as opposed to a Socratic context.

We suggest that Confucius does not and cannot possibly pose the *Euthyphro* dilemma, and neither does or can it possibly pose itself to him. This, by itself, is no objection to using the dilemma for a comparison that involves Confucius. But any such comparison would require extensive and thorough explanation and argument as to how Confucius and Socrates can be portrayed in the same or similar terms. Anything short of this means no less than to Socratize Confucius radically because a comparison along the lines of the *Euthyphro* dilemma must impose an absolute choice on Confucius where there is none and where it is hard to find much material in the *Analects* to construct one. In our reading of Confucianism, whatever is constructed as being "commanded" by "tradition" is always appropriated and thereby changed and adapted to current circumstances. Confucius himself in *Analects* 9:3 might be read to

support an argument that a constructed choice between the "command" of "tradition" and the current ways of doing things defies an absolute answer:

> The Master said, "A ceremonial cap of linen is what is prescribed by the rites. Today black silk is used instead. This is more frugal and I follow the majority. To prostrate oneself before ascending the steps is what is prescribed by the rites. Today one does so after having ascended them. This is casual and, though going against the majority, I follow the practice of doing so before ascending."[69]

Conclusion: On Comparative Philosophical Analysis

What we do when we compare can, at one level, be approximated quite straightforwardly as a two-stage process. First, every comparison must proceed from asserting one or more commonalities: assumptions and presuppositions are made, either explicitly or implicitly, to justify the comparative exercise in the first instance. Second, every comparison is interested in finding differences and similarities in two or more objects under scrutiny. These two stages are *essential* elements in any comparative analysis.

Think of a comparison between the "theories of the state" advanced by Plato in the *Republic* and by Hobbes in the *Leviathan*. The assertion of commonality at work in any such comparison is that both Plato and Hobbes had a "theory of the state."[70] Leo Strauss, for example, speaks of a history of "the theory of the State" and, in one passage, explicitly compares the different ways in which Plato and Hobbes reach their depiction of the "right State."[71] Robin George Collingwood found any such assertion utterly inappropriate. For him, it is simply that Plato and Hobbes did not both have a theory on a common object:

> Obviously the political theories [Plato and Hobbes] set forth are not the same. But do they represent two different theories of the same thing? Can you say that the *Republic* gives one account of "the nature of the State" and the *Leviathan* another? No; because Plato's "State" is the Greek πόλις, and Hobbes's is the absolutist State of the seventeenth century.[72]

To maintain that Plato and Hobbes both wrote on "the state" is to Collingwood no more than "logical bluff"; were one to investigate their presuppositions, essential differences would come to the fore; for Collingwood, it is thus quite clear that "Plato's *Republic* is an attempt at a theory of one thing; Hobbes's *Leviathan* an attempt at a theory of something else."[73]

Collingwood, to be clear, is not speaking out against all comparison whatsoever. Collingwood's comments on comparing Plato and Hobbes reflect his view of textual interpretation more generally: for him, every statement by any author "is made in answer to a question," and every question, in turn, "involves a presupposition."[74] Collingwood does not say that one cannot possibly compare Plato with Hobbes; his suggestion is that any comparison of them should begin with a reflection of the respective questions these two authors attempted to answer and continue only if, or

only to the extent that, the case for a common question can be argued and supported appropriately. A general comparison between the *Republic* and the *Leviathan* must therefore consider whether Plato and Hobbes were trying to answer the same question. Obviously, as Collingwood notes, they were not, but this does not, of course, rule out the possibility that some part or aspect of each of their theories might be fruitfully compared.

Comparative study, then, proceeds from identifying real and relevant similarities between the objects that are being compared. The initial assertion of commonality forms the basis for subsequent constructions; what is crucial is that similarities between objects under comparison are often mistaken for commonalities if assumptions or presuppositions are not considered properly. Shared terminology or vocabularies are obvious cases where such similarities can be more readily assumed. For example, when Roman lawyers spoke of *iustitia* or "justice" they meant something quite different from what modern thinkers mean when they use the same term. For Roman lawyers, justice was the giving to each what is their due and was thus something to be *discovered.* By contrast, when modern philosophers use the term, they often have substantive ideas in mind as to what constitutes justice and are thus thinking of principles or axioms of justice that should be *followed* or *obeyed*.[75]

The assertion and construction of commonalities plays an important role in comparison between *Analects* 13:18 and the *Euthyphro* dialogue. These asserted commonalities can be deconstructed in a number of ways. One might examine the historical background that informs the *Analects* and the *Euthyphro,* respectively, and see whether the commonality under scrutiny still holds. Alternatively, one might focus on the contemporary context or the subsequent narrative of the texts, that is, the history of reception of the *Analects* and the *Euthyphro.* We are almost sure to have constructed, without noticing it ourselves, one or more commonalities in the course of this essay. On reflection, for instance, although we do not suggest radical incommensurability, we have assumed that there is a Western as well as a Chinese "philosophical tradition," but we have not produced any arguments for backing this assertion of commonality. Obviously, we cannot compare without constantly assuming or constructing commonalities. Our suggestion is that comparative study is beneficial only if at least *guiding* commonalities in a comparison are made transparent, critically questioned, and—if still embraced—justified in a thoroughly reasoned manner. Taking Confucius and Socrates either as addressing the *same* question of filial piety in *Analects* 13:18 and in the *Euthyphro* or as giving answers to the *same* dilemma is, we contend, a challenging task, if it is at all feasible.

Notes

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anonymous referees for their comments and suggestions. Responsibility for the text remains with the authors.

1 – Rui Zhu, "What if the Father Commits a Crime?" *Journal of the History of Ideas* 63 (1) (2002): 1–17; Greg Whitlock, "Concealing the Misconduct of One's Own Father: Confucius and Plato on a Question of Filial Piety," *Journal of Chinese Philosophy* 21 (2) (1994): 113–137.

2 – Jiyuan Yu, "The Beginning of Ethics: Confucius and Socrates," *Asian Philosophy* 15 (2) (2005): 173–189.

3 – D. C. Lau, *Confucius: The Analects* (London: Penguin, 1979), p. 121.

4 – Compare, for example, Arthur Waley, *The Analects of Confucius* (New York: Vintage Books, 1989 [1938]), p. 176; E. Bruce Brooks and A. Taeko Brooks, *The Original Analects: Sayings of Confucius and His Successors* (New York: Columbia University Press, 1998), p. 102; Roger T. Ames and Henry Rosemont, Jr., *The Analects of Confucius: A Philosophical Translation* (New York: Ballantine, 1998), p. 167; James Legge, *Confucius: Confucian Analects, The Great Learning and The Doctrine of the Mean* (New York: Dover, 1971 [1893]), p. 270; and Wing-tsit Chan, *A Source Book in Chinese Philosophy* (Princeton: Princeton University Press, 1963), p. 41.

5 – Hsieh Yu-wei, "The Status of the Individual in Chinese Ethics," in *The Chinese Mind,* ed. Charles A. Moore (Honolulu: East-West Center Press, 1968), pp. 320–321.

6 – Plato, *Euthyphro,* 5d–e, in *Plato: Five Dialogues,* trans. G.M.A. Grube, rev. John M. Cooper, 2nd ed. (Indianapolis: Hackett, 2002), p. 6.

7 – Ibid., 10a, p. 12.

8 – Garrett Barden, *After Principles* (Notre Dame: University of Notre Dame Press, 1990), pp. 23–24. For an account of how the patterns of thinking that appeared in natural philosophy during the seventeenth century, and which laid the foundations for modern Western philosophy, mirrored the differences between St Thomas' rationalism and Occam's voluntarism, see Margeret J. Osler, *Divine Will and the Mechanical Philosophy* (Cambridge: Cambridge University Press, 1994). See also Tim Murphy, "St Thomas Aquinas and the Natural Law Tradition," in Tim Murphy, ed., *Western Jurisprudence* (Dublin: Thomson Round Hall, 2004).

9 – Zhu, "What if the Father Commits a Crime?" pp. 1–2.

10 – Ibid., p. 2.

11 – Ibid., p. 4; emphasis in original.

12 – Ibid., pp. 6–7.

13 – Ibid., p. 8.

14 – Ibid, p. 9.

15 – Ibid.

16 – Ibid.

17 – Ibid., p. 17.

18 – Ibid.

19 – Ames and Rosemont, *The Analects of Confucius,* pp. 127, 147.

20 – Ibid., pp. 23–28.

21 – Zhu, "What if the Father Commits a Crime?" p. 10.

22 – Ibid., p. 11.

23 – Ibid., p. 12.

24 – Ibid.

25 – Ibid., p. 14.

26 – Ibid., p. 16.

27 – Tu Wei-ming, *Confucian Thought: Selfhood as Creative Transformation* (Albany: State University of New York Press, 1985), p. 81.

28 – Zhu, "What if the Father Commits a Crime?" p. 12.

29 – Ibid., p. 13.

30 – Whitlock, "Concealing the Misconduct of One's Own Father," p. 115.

31 – Ibid., p. 117.

32 – Ibid., p. 119.

33 – Ibid., pp. 124–125.

34 – Ibid., p. 126.

35 – Ibid., p. 128.

36 – Ibid., p. 129; emphasis in original.

37 – Ibid., pp. 130–131.

38 – Ibid., p. 129.

39 – Ibid., p. 127.

40 – Ibid.

41 – Ibid.

42 – Ibid., p. 135.

43 – Ibid.

44 – Ibid.

45 – Yu, "The Beginning of Ethics," p. 184.

46 – Ibid., pp. 175, 179–181; cf. *Crito* 46b.

47 – Yu, "The Beginning of Ethics," pp. 173, 181.

48 – Ibid., p. 174; trans. Lau, in *Confucius: The Analects;* modified by Yu.

49 – Yu, "The Beginning of Ethics," p. 174.

50 – *Apology* 30e, trans. Cooper in *Plato: Five Dialogues,* trans. G.M.A. Grube, rev. John M. Cooper, 2nd ed. (Indianapolis: Hackett, 2002), p. 6.

51 – Yu, "The Beginning of Ethics," p. 174.

52 – Ibid.

53 – Ibid., p. 175.

54 – Ibid., pp. 177, 182.

55 – Ibid., p. 182.

56 – Ibid., p. 183.

57 – Ibid.

58 – Ibid.

59 – Ibid.

60 – Ibid.; emphasis added.

61 – Ibid., p. 174.

62 – Ibid., p. 180.

63 – Ibid., p. 177.

64 – Ibid., p. 183.

65 – Ibid.

66 – Ames and Rosemont, *The Analects of Confucius,* p. 47.

67 – Yu, "The Beginning of Ethics," p. 174.

68 – Ibid., p. 175.

69 – Lau, *Confucius: The Analects,* p. 96.

70 – Cf. the accounts of Plato's and Hobbes' "theory of the state," in Norman Wilde, *The Ethical Basis of the State* (Princeton: Princeton University Press, 1924).

71 – Leo Strauss, *The Political Philosophy of Hobbes: Its Basis and Its Genesis* (Chicago: University of Chicago Press, 1996), pp. 1, 152.

72 – Robin George Collingwood, *An Autobiography* (Harmondsworth: Penguin Books, 1944), pp. 44–45.

73 – Ibid., p. 45.

74 – Robin George Collingwood, *An Essay on Metaphysics,* rev. ed. with an introd. and additional material, ed. Rex Martin (Oxford: Oxford University Press, 2002), pp. 23–25.

75 – See Garrett Barden and Tim Murphy, "Society as a Source of Law," *Studies: An Irish Quarterly Review* 95 (Winter 2006): 407.